

ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

Muhammad Ramzan **VS** The State and another.

08.06.2022. Malik Muhammad Hayat, Advocate with the petitioner.
Jam Muhammad Tariq, Deputy Prosecutor General with Abid, A.S.I.
Mr. Muhammad Gulzar Khaliq, Advocate for the respondent No.2/complainant.

4. The allegation against the petitioner, culled from the evidentiary material produced before the Court is that he had drawn a cheque of the value of Rs.3,48,000/- and issued the same to the complainant of the case, which on presentation before the concerned Bank Authorities, was dishonoured.

5. I have heard the arguments of the learned counsel for the petitioner, the learned Deputy Prosecutor General, the learned counsel appearing on behalf of the respondent No.2/complainant and perused the record with their able assistance.

6. This is a pre-arrest bail and only a tentative assessment of the evidentiary material produced before the Court can be made at this stage. It has been noted with grave concern that though in the F.I.R, it had been got recorded that on **15.08.2021**, the petitioner had obtained a loan of the amount of Rs.3,48,000/- from the complainant of the case and issued the cheque for the return of the same however, in the record of the investigation maintained by the Investigating Officer of case, a document is present according to which, it was on **25.08.2021**, when the petitioner and Muhammad Buksh, the complainant of the case went to the police station City Kehror Pacca, District Lodhran and a meeting was held with regard to the resolution of the dispute between the parties and during the said meeting, it was determined that the petitioner had retained pulses of the total value of Rs.3,48,000/- and for the return of the said price of the pulses, the cheque in dispute had been handed over to the complainant of the case by the petitioner in the presence of the witnesses namely Hafiz Allah Buksh, Muhammad Yasin and Muhammad Asghar at the police station on **25.08.2021**. The presence of the said document prepared at the police station by A.S.I himself is not denied by the Investigating Officer of case rather it has been stated that the proceedings scribed in the said document were actually held and are reflective of the actual circumstances. The document prepared on 25.08.2021 by the A.S.I. of the police station denudes the *mala fide* of the complainant of the case in its entirety. In view of the matter, when it has been brought on the record that the petitioner had not received any amount of Rs.3,48,000/- on 15.08.2021 from the complainant of the

case , contrary to what was recorded in the F.I.R, and the petitioner had not issued the questioned cheque to the complainant of the case on 15.08.2021, then the liability of the petitioner for the offence made punishable under section 489F P.P.C. become nebulous for the reason that it is now yet to be determined as to when and for what fulfilment of which obligation, the cheque in question had been handed over to the complainant of the case by the petitioner and when a question has also raised over the allegation contained in the F.I.R that the cheque had been handed over to the complainant of the case for the return of the loan. It would be the learned trial court which would determine these very important aspects of the case. In these circumstances, the remedy for the complainant for the recovery of the money lies somewhere else in law than the registering of the case in respect of an offence under section 489F P.P.C. According to the Investigating Officer, *nothing is to be recovered from the possession of the petitioner*. The prosecution case mainly is based on documentary evidence which has already been taken into possession by the Investigating Officer. The Investigating Officer of the case has verified the versions of the petitioner as well as the complainant during the investigation of the case. The liberty of the citizens has always been jealously guarded by the Courts of law. Sending the petitioner behind bars in the circumstances would not serve any useful purpose and would cause irreparable loss to his reputation. Reliance is placed on the case of “Khalil Ahmad Soomro and others v. The State” (PLD 2017 SC 730) wherein the following principle has been enunciated:-

“Although for grant of pre-arrest bail one of the pre conditions is that the accused person has to show that his arrest is intended by the prosecution out of mala fide and for ulterior consideration. At pre-arrest bail stage, it is difficult to prove the element of mala fide by the accused through positive/solid evidence/materials and the same is to be deduced and inferred from the facts and circumstances of the case and if some events-hints to that effect are available, the same would validly constitute the element of mala fide.”

5. In view of the above discussion, this petition is **allowed** and the ad-interim pre-arrest bail already granted to the petitioner by this Court *vide* order dated 25.05.2022 is hereby **confirmed** subject to his furnishing fresh bail bonds in the sum of Rs.50,000/- (Rupees fifty thousand) with two sureties each, in the like amount to the satisfaction of the learned trial Court.

6. It is clarified that the observations enumerated are absolutely tentative in nature and restricted only to the extent of this particular petition, having no nexus and relevance with the trial, which shall be concluded quite independently and purely on merit. Furthermore, a direction is issued to the Investigating Officer of the case to complete the investigation of the case within the next three days positively and the S.H.O. concerned is directed to submit the report under section 173 Cr.P.C within the next five days positively. Furthermore, the learned trial court is directed to conclude the trial of the case expeditiously, preferably, within a period of **three months** after taking cognizance of the case. If the delay in conclusion of the trial is occasioned by any act of the petitioner or any person acting on his behalf, or if the petitioner absents himself from the learned trial court or if the petitioner misuses the concession of the bail in any

manner, the learned trial court shall be at liberty to cancel the bail of the petitioner, in accordance with the law.

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for reporting

JUDGE

****T.M.Alvi/****